ORDINANCE NO. 25-O-2918

AN ORDINANCE OF THE CITY OF BEVERLY HILLS AMENDING SHORT TERM RENTAL REGULATIONS (TRANSIENT USES) FOR SINGLE FAMILY AND MULTIFAMILY RESIDENTIAL ZONES, AND MAKING A DETERMINATION OF EXEMPTION UNDER THE CALIFORNIA ENVIRONMENTAL QUALITY ACT (CEQA)

THE CITY COUNCIL OF THE CITY OF BEVERLY HILLS DOES ORDAIN AS FOLLOWS:

Section 1. During the City's Housing Element Update Review process for the 6th cycle planning period from 2021 to 2029, the California Department of Housing and Development (HCD) directed the City to: update the Beverly Hills Municipal Code (BHMC) definitions for "One-Family or Single-Family Residence or Dwelling" and "Single Housekeeping Unit"; clarify zoning districts that accommodate "Group Homes or Residential Care Facilities" and "Transitional Housing and Supportive Housing" to address housing constraints on persons with disabilities; address the replacement housing requirements for the sites inventory of the Housing Element; and to amend emergency shelter regulations in compliance with state law;

Section 2. On November 14, 2024, the Planning Commission held a duly noticed public hearing to discuss the proposed Amendments to the BHMC pertaining to short term rental regulations, also known as single-family and multi-family transient uses, after which it adopted Resolution No. 2076 recommending that the City Council adopt the proposed changes (collectively, the "Amendments"). On July 1, 2025, the City Council held a duly noticed public hearing, received public testimony, and thereafter introduced this Ordinance.

Section 3. The Amendments were assessed in accordance with the authority and criteria contained in the California Environmental Quality Act (CEQA), the State CEQA

Guidelines, and the environmental regulations of the City. The Planning Commission recommends that the City Council find the ordinance is exempt from CEQA because it can be seen with certainty that there is no potential for such ordinance to have a significant adverse effect on the environment pursuant to CEQA Guidelines Section 15061(b)(3). Section 15061(b)(3) of Title 14 of the California Code of Regulations states that CEQA applies only to projects which have the potential for causing a significant effect on the environment. The Amendments do not authorize construction and only involve revisions to existing standards and land use limitations for certain residential zones in the City. Therefore, it can be seen with certainty that the draft ordinance has no potential to cause a significant effect on the environment and the Amendments are categorically exempt from further review under CEQA pursuant to Section 15061(b)(3) and 15305 of Title 14 of the California Code of Regulations.

Section 4. The Amendments are consistent with the objectives, principles, and standards of the General Plan. The Housing Element of the General Plan includes Goal H1 – Maintenance and Conservation, which encourages the maintenance of the quality and character of existing housing and residential neighborhoods, and Policy H1.5 – Conservation of Existing Rental Housing calls for preventing the loss of existing residential units. Similarly, the Housing Element sets forth Goal H2 – Housing Supply and Diversity, which calls for the provision of a variety of housing types and adequate affordable housing supply. Goal H3 – Fair Housing and Special Needs Residents promotes equal housing opportunities for all residents, especially persons with disabilities, homeless, and those at risk of homelessness. General Plan Land Use (LU) Policy 5.1 - Neighborhood Conservation calls for the maintenance of the uses, densities, character, amenities, and quality of the City's residential neighborhoods, recognizing their contribution to the City's identity, economic value, and quality of life. Goals LU 6 – Single-Family Residential

Neighborhoods and LU 7 – Multi-Family Residential Neighborhoods require that both single-family and multi-family neighborhood identities are maintained with regard to character, identity, and amenities. Amending sections of the Beverly Hills Municipal Code to limit short term rental uses in residential zones will meet several of the stated objectives, standards, goals, and policies of the General Plan. The Amendments will further protect the identity of residential neighborhoods by prohibiting potentially adverse impacts and preserving housing opportunities for a range of household types, which will further the public interest, health, safety, morals, peace, comfort, convenience, or general welfare.

Section 5. Section 1-2-1 (Application of Definitions) of Chapter 2 (Definitions) of Title 1 (General Provisions) of the BHMC is hereby amended to add a definition of Responsible Person in alphabetical order to read as follows:

> "RESPONSIBLE PERSON: Any Person who in whole or in part, directly or indirectly, causes, maintains, permits, arranges, facilitates, aids and/or abets a violation of this code. The term "Responsible Person" includes, but is not limited to: any person or entity who has any ownership or possessory interest in real or personal property or who is in control thereof, whether actual or constructive; acts an as an agent or broker, or on behalf of persons having an ownership or possessory interest in such property; has actual or ostensible control of such property; any person who has actual or apparent authority or supervises a person and any other person or entity whose actions in whole or in part, directly or indirectly, causes, maintains, permits, arranges, facilitates, aids and/or abets a violation of this code."

Section 6. The definition of "Multi-Family Transient Use" in Section 10-3-100 (Words Defined) in Article 1 (Definitions) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows, with all other definitions in Section 10-3-100 remaining in place without amendment:

"MULTI-FAMILY TRANSIENT USE: Rental, lease, sublease, or similar agreement for habitation or exclusive or shared use of a multi-family dwelling unit or any portion thereof, or accessory dwelling unit(s), for a period of less than twelve (12) consecutive months; or the rental of an accessory structure, or any other feature or portion of multi-family residential property including but not limited to pools, game courts, and yards. The initial minimum lease term shall not preclude a lease from reverting to a month-to-month lease after the initial term has concluded. Multi-family transient uses do not include in home caretakers occupying a multi-family residence in conjunction with providing care giving services to the primary occupants of that residence."

Section 7. The definition of "Single-Family Transient Use" in Section 10-3-100 (Words Defined) in Article 1 (Definitions) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows, with all other definitions in Section 10-3-100 remaining in place without amendment:

"SINGLE-FAMILY TRANSIENT USE: Rental, lease, sublease, or similar agreement for habitation or exclusive or shared use of a Single-Family Residence, or Accessory Dwelling Unit(s) of a Single-Family Residence for a period of less than twelve (12) consecutive months; or the rental of an Accessory Structure, or any other feature or portion of Single-Family Residential property including but not limited to pools, Game Courts, and Yards.

The initial minimum lease term shall not preclude a lease from reverting to a month-to-month lease after the initial term has concluded. Single-Family Transient Uses do not include Home Occupation activities authorized pursuant to Section 10-3-4302, filming and photography activities permitted pursuant to Section 4-3-101 et seq, or in home caretakers occupying a Single-Family Residence in conjunction with providing care giving services to the primary occupants of the residence."

Section 8. Section 10-3-205 (Violations; Enforcement) of Article 2 (Purpose, Conflicts, Compliance and Enforcement of Provisions) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-205. VIOLATIONS; ENFORCEMENT:

Any use, occupation, building, or structure maintained contrary to the provisions of this Chapter shall constitute a public nuisance as well as subject the Responsible Persons to any remedy set forth in Title 1, Chapter 3 of this Code.

For any violation of the prohibitions on Single-Family or Multi-Family Transient Uses pursuant to Title 10, Chapter 3 of this Code, in addition to the penalties set forth above, any and all Responsible Persons, jointly and severally, shall be required pay to any transient tenant all monies paid to or received by any Responsible Person as a direct or indirect result of the unlawful transient uses and shall also remit to the City all Transient Occupancy Taxes that would have been due had the transient use not been unlawful.

The City Attorney and City Prosecutor are authorized to initiate any civil or criminal action to enforce this section and to recover for the benefit of any transient tenant any monies that

they may be due under this section. Any monies due to a transient tenant under this section that are not claimed or if the transient tenant cannot be located within three (3) years by the City, the monies shall be remitted to the State of California as unclaimed funds."

Section 9. Section 10-3-206 (Limitation of Actions) of Article 2 (Purpose, Conflicts, Compliance and Enforcement of Provisions) of Chapter 2 (Zoning) of Title 10 (Planning and Zoning) is hereby amended to read as follows:

"10-3-206. ADDITIONAL ENFORCEMENT:

For any knowing violation of the prohibition on Single-Family or Multi-Family Transient Uses pursuant to Chapter 3 of Title 10 of this Code, any Person who collects and remits Transient Occupany Tax to the City may seek an injunction or other relief to prevent or remedy violations. The prevailing party in such an action shall be entitled to damages and to recover reasonable costs and attorney's fees."

Section 10. Section 10-3-401 (Uses and Buildings Permitted) of Article 4 (One-Family Residential Zone (R-1)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-401: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1 shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare homes licensed pursuant to state law, small or large residential community care facility operating

in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing."

Section 11. Section 10-3-406 (Businesses Prohibited) of Article 4 (One-Family Residential Zone (R-1)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-406: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1. All property and buildings in zone R-1 hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 12. Section 10-3-501 (Uses and Buildings Permitted) of Article 5 (One-Family Residential Zone (R-1.X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-501: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.X shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare homes licensed pursuant to state law, small or large residential community care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 13. Section 10-3-508 (Businesses Prohibited) of Article 5 (One-Family Residential Zone (R-1.X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-508: BUSINESSES PROHIBITED; MIMIUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.X. All property and buildings in zone R-1.X hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial

lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 14. Section 10-3-601 (Uses and Buildings Permitted) of Article 6 (One-Family Residential Zone (R-1.5)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-601: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.5 shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 15. Section 10-3-607 (Businesses Prohibited) of Article 6 (One-Family Residential Zone (R-1.5)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-607: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.5. All property and buildings in zone R-1.5 hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in

a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 16. Section 10-3-701 (Uses and Buildings Permitted) of Article 7 (One-Family Residential Zone (R-1.5X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-701: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.5X shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 17. Section 10-3-704 (Businesses Prohibited) of Article 7 (One-Family Residential Zone (R-1.5X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-704: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.5X. All property and buildings in zone R-1.5X hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 18. Section 10-3-801 (Uses and Buildings Permitted) of Article 8 (One-Family Residential Zone (R-1.5X2)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-801: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.5X2 shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community care facility operating

in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 19. Section 10-3-805 (Businesses Prohibited) of Article 8 (One-Family Residential Zone (R-1.5X2)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-805: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.5X2. All property and buildings in zone R-1.5X2 hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 20. Section 10-3-901 (Uses and Buildings Permitted) of Article 9 (One-Family Residential Zone (R-1.6X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning of the BHMC is hereby amended to read as follows:

"10-3-901: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.6X shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community residential care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 21. Section 10-3-904 (Businesses Prohibited) of Article 9 (One-Family Residential Zone (R-1.6X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning of the BHMC is hereby amended to read as follows:

"10-3-904: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.6X. All property and buildings in zone R-1.6X hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial

lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 22. Section 10-3-1001 (Uses and Buildings Permitted) of Article 10 (One-Family Residential Zone (R-1.7X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read:

"10-3-1001: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.7X shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 23. Section 10-3-1004 (Businesses Prohibited) of Article 10 (One-Family Residential Zone (R-1.7X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read:

"10-3-1004: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.7X. All property and buildings in zone R-1.7X hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as

defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing".

Section 24. Section 10-3-1101 (Uses and Buildings Permitted) of Article 11 (One-Family Residential Zone (R-1.8X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1101: USES AND BUILDINGS PERMITTED:

Except as otherwise provided in this article, no lot, premises, building or portion thereof in zone R-1.8X shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except as a private one-family residence, family daycare home licensed pursuant to state law, small or large residential community care facility operating in compliance with section 10-3-2778 of this chapter, or transitional or supportive housing structured as a single-family residence."

Section 25. Section 10-3-1104 (Businesses Prohibited) of Article 11 (One-Family Residential Zone (R-1.8X)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1104: BUSINESSES PROHIBITED; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-1.8X. All property and buildings in zone R-1.8X hereby are limited to strictly private one-family residential uses except as otherwise provided in this article. A single-family transient use of a "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, by a single housekeeping unit is prohibited in a single-family residence, accessory dwelling unit(s), or other accessory structure(s) of a single-family residence, including but not limited to pools, game courts, or yards.

B. A "single-family residence" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing".

Section 26. Section 10-3-1209 (Businesses Prohibited; Exceptions) of Article 12 (Multiple Residential Zone (R-4)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1209: BUSINESSES PROHIBITED; EXCEPTIONS; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-4, except the business of an apartment house. All property and buildings

in zone R-4 hereby are limited to residential uses, except as otherwise provided in this article. A multi-family transient use as defined in section 10-3-100 of this chapter is prohibited in a multi-family residence, or accessory dwelling unit(s), or other accessory structure(s) of a multi-family residence, including but not limited to pools, game courts, or yards.

B. A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year) provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 27. A new section, "Section 10-3-1231.5 (Uses Prohibited)" is hereby added to Article 12.3 (Multiple-Family Residential-Commercial Parking Zone (RMCP)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC to read as follows:

"10-3-1231.5: USES PROHIBITED:

A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 28. Section 10-3-1304 (Businesses Prohibited, Exceptions) of Article 13 (Residential Income and Multiple Dwelling Zone (R-4X1)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1304: BUSINESSES PROHIBITED; EXCEPTIONS; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-4X1 except for the business of an apartment house. All property and buildings in zone R-4X1 hereby are limited to residential uses, except as otherwise provided in this article. A multi-family transient use as defined in section 10-3-100 of this chapter is prohibited in a multi-family residence, or accessory dwelling unit(s), or other accessory structure(s) of a multi-family residence, including but not limited to pools, game courts, or yards.

B. A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing".

Section 29. Section 10-3-1503 (Businesses Prohibited; Exceptions) of Article 15 (Multiple Residential Zone (R-3)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1503: BUSINESSES PROHIBITED; EXCEPTIONS; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either

thereof, in zone R-3, except the business of an apartment house. All property and buildings in zone R-3 hereby are limited to residential uses, except as otherwise provided in this article. A multi-family transient use as defined in section 10-3-100 of this chapter is prohibited in a multi-family residence, or accessory dwelling unit(s), or other accessory structure(s) of a multi-family residence, including but not limited to pools, game courts, or yards.

B. A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing."

Section 30. Section 10-3-1543 (Businesses Prohibited; Exceptions) of Article 15.3 (Residential Parking Zone (R-4-P)) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1543: BUSINESSES PROHIBITED; EXCEPTIONS; MINIMUM INITIAL RENTAL PERIODS:

A. Except as provided in article 43 of this chapter, no business shall be conducted or maintained in any building or upon any lot or premises, or upon any portion of either thereof, in zone R-4, except the business of an apartment house. All property and buildings in zone R-4 hereby are limited to residential uses, except as otherwise provided in this article. A multi-family transient use as defined in section 10-3-100 of this chapter is prohibited in a multi-family residence, or accessory dwelling unit(s), or other accessory

structure(s) of a multi-family residence, including but not limited to pools, game courts, or yards.

B. A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing".

Section 31. Section 10-3-1877 (Restricted Uses) of Article 18.7 (Mixed Use (MU) Overlay Zone) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-1877: RESTRICTED USES; MIMIMUM INITIAL RENTAL PERIODS:

The following restrictions shall apply to mixed use development in the MU Overlay Zone:

A. No medical uses may be included in a mixed use development.

B. No entertainment uses including, but not limited to, cabarets, nightclubs, and adult entertainment businesses, may be included in a mixed use development.

C. Residential uses included as part of a mixed use development shall be permitted in all portions of the development regardless of the underlying zone, except that residential uses shall not be permitted within the first forty feet (40') of depth from any street-facing property line of the first floor, except as otherwise allowed through the development plan review request.

D. Commercial uses included as part of a mixed use development shall only be permitted in those portions of the development in which the underlying zone is a commercial zone

unless otherwise approved through a zone text amendment request. Further, no commercial uses shall be allowed above the third story of a mixed use development.

E. A "multi-family dwelling" or "accessory dwelling unit", as defined in section 10-3-100 of this chapter, may be rented or leased (as evidenced by a written rental or lease agreement, or by evidence of occupancy for at least one year), provided that the initial lease term shall be at least one year. This provision does not apply to transitional housing, emergency shelters, congregate care facilities, or supportive housing.

F. The planning commission shall have authority through conditions imposed on a development plan review permit to prohibit uses not specified herein, on a use by use basis, if it finds that the proposed uses will have a significant adverse impact on adjacent uses, or will not promote harmonious development of the area."

Section 32. Section 10-3-302 (Permitted And Conditionally Permitted Uses For Residential Zoning Districts And Zoning District Overlays) of Article 3 (Establishment Of Zones; Permitted And Conditionally Permitted Uses) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"The following charts establish permitted uses and conditionally permitted uses in all residential zoning districts and zoning district overlays:

A. Single-Family Residential Zones: Except as otherwise provided in this article, no lot, premises, building or portion thereof in a single-family residential zone shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except:

ALLOWED USES AND PERMIT REQUIREMENTS FOR SINGLE-FAMILY RESIDENTIAL ZONING DISTRICTS AND ZONING DISTRICT OVERLAYS

P = Permitted use	UP = Use permit	CUP = Conditional use permit

		R-1	R-1.X	R-1.5	R-1.5X	R-1.5X2	R-1.6X	R-1.7X	R-1.8X
Accessory dwelling units and junior accessory dwelling units (subject to article 50 of this chapter)		P	P	P	P	P	P	P	P
Single-family dwelling		P	P	P	P	P	P	P	P
Transitional and supportive housing [1]:									
	Single-family structure	P	P	P	P	P	P	P	P
Family daycare homes, licensed pursuant to state law		P	P	P	P	P	P	P	P
Community residential care facility[2] (state licensed):									
	Small (serving 6 or fewer)	P	P	P	P	P	P	P	P
	Large (serving 7 or more)	P[3]	P[3]	P[3]	P[3]	P[3]	P[3]	P[3]	P[3]
Educational institutions		CUP	CUP[4]	CUP		CUP[4]			
Museums		CUP	CUP	CUP					
Public utility uses (except as provided in section 10-3-2754 of this chapter)		CUP	CUP	CUP					
Religious institutions		CUP		CUP					
Public libraries						CUP			
Publicly owned playgrounds						CUP			

Home occupations (subject to section 10-3-4303 of this chapter)	P	P	P	P	P	P	P	

Notes:

1. Transitional or supportive housing is permitted in residential zones subject to the same standards as similar residential uses; therefore, if such housing is configured as a single-family residence, it is regulated as such and is subject to all regulations applied to residences in the single-family residential zone where it is located.

2. For the purposes of this section, residential care facilities for the elderly, as defined in state law, shall be treated the same as community residential care facilities. Community residential care facilities shall comply with the requirements in section 10-3-2778 of this chapter.

3. A zoning clearance prior to the submittal of an application for building permit is required to verify the compliance of the community residential community care facility with the applicable requirements in section 10-3-2778 of this chapter.

4. Public educational institutions only.

B. Multiple-Family Residential Zones: Except as otherwise provided in this article, no lot, premises, building or portion thereof in a multiple-family residential zone shall be erected, constructed, built, altered, enlarged, built upon, used, or occupied for any purpose except:

ALLOWED USES AND PERMIT REQUIREMENTS FOR MULTIPLE-FAMILY RESIDENTIAL ZONES AND ZONING DISTRICT OVERLAYS

P = Permitted use	CUP = Conditional use permit

		R-4	RMCP	Special Needs Housing Overlay Zone [5]	R-4X1	R-4X2	R-3	R-4-P
Single-family dwelling		P	P		P	P	P	
Accessory dwelling units and junior accessory dwelling units (subject to article 50 of this chapter)		P	P		P	P	P	P
Multiple-family dwellings		P	P		P	P	P	P
Transitional and supportive housing:								
	Single-family structure	P[1]	P[1]			P[1]	P[1]	P[1]
	Multi-family structure	P[1]	P[1]			P[1]	P[1]	P[1]
Family daycare homes, licensed pursuant to state law		P	P		P	P	P	P
Emergency shelters (subject to section 10-3-1275 of this chapter)				P				
Single room occupancy housing (SRO)				CUP				
Community residential care facilities[2] (state licensed):								
	Small (6 or fewer)	P	P		P	P	P	P
	Large (7 or more)	P[3]	P[3]		P[3]	P[3]	P[3]	P[3]
Public library		P	P			P		
Childcare uses licensed pursuant to state law		CUP	CUP			CUP		CUP
Educational institutions		CUP	CUP			CUP		CUP
Multiple-family congregate housing for the elderly or disabled pursuant to article 12.8 of this chapter				CUP				
Multiple-family housing for the elderly or disabled pursuant to article 12.5 of this chapter		CUP	CUP			CUP		CUP
Museums		CUP	CUP			CUP		CUP
Public utility uses[4]		CUP	CUP			CUP		CUP
Religious institutions		CUP	CUP			CUP		CUP

Restaurants located in nonconforming hotels (subject to section 10-3-1207 of this chapter)	CUP	CUP			CUP		CUP
Convenience retail uses (subject to section 10-3-1233 of this chapter)		CUP					
Public parking uses		CUP					
Ancillary retail uses[6]							P
Ancillary parking facilities[6]							P

Notes:

1. Transitional or supportive housing is permitted in residential zones subject to the same standards as similar residential uses; therefore, if such housing is configured as a multiple-family residence, it is regulated as such and is subject to all regulations applied to residences in the multiple-family residential zone where it is located.

2. For the purposes of this section, residential care facilities for the elderly, as defined in state law, shall be treated the same as community residential care facilities. Community residential care facilities shall comply with the requirements in section 10-3-2778 of this chapter.

3. A zoning clearance prior to the submittal of an application for building permit is required to verify the compliance of the community residential community care facility with the applicable requirements in section 10-3-2778 of this chapter.

4. Except as provided in section 10-3-2754 of this chapter.

5. Uses allowed in the special needs housing overlay zone are in addition to any use allowed in the underlying zoning district.

6. If approved by the planning commission as part of a planned development pursuant to article 18.4 of this chapter.

(Ord. 17-O-2724, eff. 2-10-2017; amd. Ord. 24-O-2892, eff. 4-18-2024; Ord. 24-O-2894, eff. 6-7-2024)."

Section 33. Subsection A of Section 10-3-303 (Permitted And Conditionally Permitted Uses For Nonresidential Zoning Districts And Zoning District Overlays And Supportive Housing) of Article 3 (Establishment Of Zones; Permitted And Conditionally Permitted Uses) Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows, with all other provisions of Section 10-3-303 remaining without amendment:

"10-3-303: PERMITTED AND CONDITIONALLY PERMITTED USES FOR NONRESIDENTIAL ZONING DISTRICTS AND ZONING DISTRICT OVERLAYS AND SUPPORTIVE HOUSING:

A. Permitted Uses: Uses for all nonresidential zones and zoning district overlays are listed in the article addressing each specific zone or zoning district overlay. Unless otherwise specified by the zoning district overlay or specific project approval, multi-family transient uses shall be prohibited."

Section 34. Section 10-3-4302 (Prohibited Home Occupation Activities) of Article 43 (Home Occupations) of Chapter 3 (Zoning) of Title 10 (Planning and Zoning) of the BHMC is hereby amended to read as follows:

"10-3-4302: PROHIBITED HOME OCCUPATION ACTIVITIES:

Notwithstanding any other provision to the contrary, no person shall engage in, permit, carry on, or conduct any of the following activities as a home occupation at any time in a residential zone:

A. Repair, servicing, alteration, assembly, upholstery, or construction of any automobile or other motor vehicle as defined in the California Vehicle Code;

B. Any hotel use or any other transient lodging use for compensation or benefit of any kind, including, but not limited to, the operation of bed and breakfast inns, hostels, hotels, or any similar operation;

C. Restaurant, excluding a restaurant or caterer that delivers goods or services to a residential site, has a principal place of business outside of any residential zone, and conducts no administrative or processing function within a residential zone;

D. Caterer, unless a permit shall have first been obtained from the director of building and safety approving any equipment to be installed and operated in connection with the catering business;

E. Rental of any residence, or any portion thereof, for events or activities such as parties, banquets, auctions, or similar activities, except in connection with nonprofit and/or charity functions, provided such nonprofit or charity functions are limited to one time per quarter not to exceed four (4) times in any twelve (12) month period;

F. All activities regulated under title 4, chapter 2 of this code;

G. Activities regulated under title 4, chapter 3 and chapter 4, article 5 of this code except as authorized by permit under title 4 of this code and consistent with the provisions of this article;

H. Any activity that would produce biohazardous or medical waste, as those terms are defined in the California Health and Safety Code, or involves the storage of materials in a

manner that would result in a change in the occupancy classification of a residential structure under the city's building code, mechanical code, fire code or plumbing code, or that would otherwise violate any building or fire code or other law;

I. Conduct any use, other than a residential use, prohibited in the C-3 zone;

J. Conduct any use conditionally permitted in the C-3 zone;

K. Manufacturing, excluding activities or occupation such as: 1) artists, authors or composers; 2) dressmakers, seamstresses, or tailors; and 3) home crafts, including, without limitation, model making, rug weaving, quilting, needle work, jewelry making, woodworking, and other similar activities which are consistent with the primary use of the dwelling as a residence, provide that such activities are limited to the use of tools and equipment commonly available for personal residential use.

L. Single-family transient uses and multi-family transient uses, as defined in 10-3-100 of this chapter, including the use of any residence, accessory dwelling unit, accessory structure, or any other feature or portion of a residential property including but not limited to pools, game courts, and yards."

Section 35. Subsection A of Section 1-3-311 (Administrative Fine; Citations and Compliance Orders) of Article 3 (Administrative Penalties) of Chapter 3 (Code Violations) of Title 1 (General Provisions) of the BHMC is hereby amended to read as follows:

"A. For any violation of this code for which the violation would otherwise be an infraction, the administrative fine shall be one hundred dollars ($100.00) for a first violation; two hundred dollars ($200.00) for a second violation of the same provision of

this code within a twelve (12) month period; and five hundred dollars ($500.00) for each additional violation of the same provision of this code within a twelve (12) month period. For any violation of this code for which there is no specific administrative fine established in this code, the fine imposed shall be that set forth in a resolution adopted by the city council.

1. For any violation of the prohibition on single-family or multi-family transient uses pursuant to Chapter 3 of Title 10 of this code, the administrative fine shall be the maximum allowed under state law for the first, second, and each additional violation. Each and every day of operation of a single-family or multi-family transient use within a rolling 12-month period shall constitute a separate and additional violation.

2. In addition to operating a single-family or multi-family transient use, it shall also constitute a separate violation of this code, subject to the a) administrative fines as provided in subsection 1, and b) any other enforcement action allowed by law, or c) any combination thereo, to advertise or list a single-family or multi-family transient use by any means and on any medium, whether or not the actual location or address of the property is included in the advertisement or listing. Each and every day an advertisement or listing is visible and accessible by the public within a rolling 12-month period shall constitute a separate and additional violation."

Section 36. Severability. If any section, subsection, subdivision, sentence, clause, phrase, or portion of this Ordinance or the application thereof to any person or place, is for any reason held to be invalid or unconstitutional by the final decision of any court of competent jurisdiction, the remainder of this Ordinance shall be and remain in full force and effect.

Section 37. Publication. The City Clerk shall cause this Ordinance to be published at least once in a newspaper of general circulation published and circulated in the City within fifteen (15) days after its passage in accordance with Section 36933 of the Government Code, shall certify to the adoption of this Ordinance, and shall cause this Ordinance and her certification, together with proof of publication, to be entered in the Book of Ordinances of the Council of this City.

Section 38. Effective Date. This Ordinance shall go into effect and be in full force and effect at 12:01 a.m. on the thirty-first (31st) day after its passage.

Adopted: August 5, 2025
Effective: September 5, 2025

SHARONA R. NAZARIAN, PSYD
Mayor of the City of Beverly Hills, California

ATTEST:

(SEAL)
HUMA AHMED
City Clerk

APPROVED AS TO FORM:

LAURENCE S. WIENER
City Attorney

APPROVED AS TO CONTENT:

NANCY HUNT-COFFEY
City Manager